

## 26STCP00839 26STCP00839

County: los-angeles

Division: Civil Law and Motion

Department: 400

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### MOTION TO COMPEL

The

Court tenders the following tentative decision in the matter Infinity

Insurance Co. v. Marino Torres, et al., Los Angeles County Superior Court case

number 26STCP00839, set for hearing on June 25, 2026. Infinity Insurance Co. (Petitioner)

requests that the Court enter an order compelling T-Mobile to produce Marino

Torres and Patricia Jara's (collectively, Respondents) cellular phone records,

including push to talk, text message, data usage, and call and tower site

information for his cell phone numbers (562) 350-3988 and (323) 495-2898, for

the time period of January 1 through 31, 2026.

"When a subpoena requires . . . the

production of books, documents or other things before a court . . . the court,

upon motion reasonably made by a party . . . may make an order quashing the

subpoena entirely, modifying it, or directing compliance with it upon such

terms or orders.” (Code Civ. Proc., § 1987.1.) “Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum.” (Id., § 1985.3, subd. (g).) “The party requesting a consumer’s personal records may bring a motion under Section 1987.1 to enforce the subpoena within 20 days of service of the written objection. The motion shall be accompanied by a declaration showing a reasonable and good faith attempt at informal resolution of the dispute between the party requesting the personal records and the consumer or the consumer’s attorney.” (Ibid.)

Here, Petitioner has brought a proper motion under section 1987.1 within 20 days of receiving written objection to the production of consumer records from T-Mobile. (Colman Decl. ¶ 8, Exs. D, E.) Respondent has signed a consent to disclose and release form. (Id. ¶ 5.) Petitioner issued the relevant subpoenas on April 7, 2026. (Id. ¶ 7.) T-Mobile requested a court order. Thus, an order under section 1987.1 is proper. Accordingly, Petitioner’s unopposed petition is granted.

Conclusion:

The Court grants

Petitioner’s petition.